NewsBank inc.

Labor - Attorney Allred files lawsuit on behalf of fired St. Francis workers in Lynwood

January 15, 2024 | Long Beach Press-Telegram (CA)
Author: Kevin Smith | Section: News | 662 Words
Page: 3
OpenURL Link

Attorney Gloria Allred has filed a lawsuit on behalf of nine St. Francis Medical Center employees who were were fired last month for protesting alleged “unsafe and unhealthy conditions for patients at the hospital.”

The suit, filed Thursday in Los Angeles Superior Court, targets St. Francis in Lynwood and Ontario-based Prime Healthcare, which owns the 384-bed, acute-care facility.

The fired workers include four regis

tered nurses and five other employees who represent the entire bargaining team with SEIU-United Healthcare Workers West, which represents employees at the facility.

Allred at a Friday news conference said the lawsuit includes “very serious and disturbing allegations.”

“All nine of these dedicated health care workers were retaliated against and wrongfully terminated in violation of their rights under California law,” she said.

Employees claim the firings stem from a Nov. 30 incident at which they hand-delivered letters of support from public and government officials to Prime’s Ontario headquarters and held a rally.

Those expressing support for the workers included Los Angeles County Supervisor Janice Hahn, Rep. Nanette Diaz Barragan, D-Long Beach and Assemblyman Jesse Gabriel, D-Encino.

Prime accepted the letters but later said the healthcare workers were trespassing on private property and had engaged in “disruptive behavior by photographing and video recording employees of the company without their consent, using profanity, and — initially — refusing to leave when told to do so.”

The employees denied the allegations but were suspended by St. Francis on Dec. 15 and fired by the hospital days later.

In a statement issued Friday, St. Francis said the workers were not fired for raising concerns over patient safety, but rather for violations of hospital policy, which were reported and fully investigated, including “abusive misconduct and trespassing.”

“St. Francis will vigorously defend the lawsuit and continue to ensure the hospital is a safe and compassionate environment for all patients and staff,” management said.

St. Francis added that, even amidst the national labor crisis and nursing shortage, it is “hiring more nurses and staff than ever before.”

The hospital said numerous visits by the California Department of Public Health found “no staffing deficiencies.” And in the midst of nationwide healthcare labor shortages, St. Francis said it hired 593 employees in 2022 and another 583 in 2023.

Nurses, medical assistants, ER techs and others at St. Francis and three other Prime Healthcare hospitals launched their second strike of 2023 in December, claiming severe understaffing and high turnover have undermined patient

care.

Allred said the fired employees believe the hospital has laid off many health care workers “in the name of profits” since Prime acquired St. Francis in 2020, leaving it inadequately staffed to “maintain safe and healthy patient care.”

St. Francis continued to accept patients, the lawsuit claims, even though nurse-to-patient ratios fell short of those required under Title 22 of the California code of regulations.

“There were numerous occasions, the suit alleges, when the required ratio was four-to-one (four patients per nurse) and there would be six patients,” Allred said. “No certified nursing assistants, no charge nurse … no breaker or any other type of resource nurse.”

Mayra Castaneda, an ultrasound tech at St. Francis, is among those terminated. She had worked there for 28 years.

“Twenty-eight years … and terminated in a phone call?” Allred said. “That cannot be allowed to stand.”

Castaneda believes the firings were management’s retaliation for the Nov. 30 visit to Prime’s Ontario headquarters.

“This was clearly a form of intimidation and retaliation,” the 43-year-old Southgate resident said last month. “I’m angry and frustrated, but I feel I’ll get my job back because this was clearly a violation of labor law.”

Lorenza Bernal, who is also among the fired workers, complained that psychiatric patients were left unattended in a room near where she worked, the complaint said.

Scott Byington, a nurse at St. Francis since 1995 and one of the nine terminated, said Prime implemented a 12% across-the-board pay cut and hiring freeze shortly after acquiring the hospital in 2020.

The lawsuit seeks unspecified damages for lost wages, emotional distress and psychological and physical injuries, as well as punitive damages and attorney fees.

kvsmith@scng.com

Copyright (c) 2024 Press-Telegram

- **Citation (apa Style)**
  Smith, K. (2024, January 15). Labor Attorney Allred files lawsuit on behalf of fired St. Francis workers in Lynwood*Long Beach Press-Telegram (CA)*, p. 3. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1969434A01DFD008.